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California signs voluntary non-UPF label into law

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California's non-UPF label – a first in the nation – is poised to reshape how food companies market healthier products, but the law's passage arrives amid growing debate over ultra-processed foods and how those claims should be certified

California is the first state with a government-backed label for qualifying foods that are not considered ultra-processed, following Gov. Gavin Newsom's signing of Assembly Bill 2244, legislation introduced by Assembly member Jesse Gabriel, D-Encino.

The new law establishes a voluntary "Non-Ultraprocessed Certified" label intended to help consumers more easily identify foods that meet California's non-UPF standard.

The label is the latest step in California's broader effort to address ultra-processed foods, with implications to set a blueprint for the rest of the country. According to the governor's office, the label will provide front-of-package information for shoppers while also improving visibility of qualifying products on shelves.

Foods containing certain additives used to enhance taste, texture or palatability, such as dyes, flavor enhancers, non-sugar sweeteners and processing aids, will not qualify for the label. Newsom framed the initiative as part of a preventative health measure intended to help consumers to easily make healthier food choices.

Under the new law, the California Department of Public Health will oversee the certification system, including accrediting third-party certifiers. Products carrying the claim will be required to undergo recertification at least once every three years.

The Environmental Working Group (EWG) co-sponsored AB 2244, which the organization lauded as a "trailblazing law."

A divided industry on UPF definitions

The legislation builds on California's previous efforts to regulate ultra-processed foods amid a pending formal definition from HHS and USDA. Last year, California adopted what state officials described as the nation's first legal definition of UPFs through the Healthy Foods, Healthy Kids Act, which also established a timeline for phasing ultra-processed foods out of schools.

While the bill won support from public health advocates, it has also highlighted ongoing debate over how ultra-processed foods should be defined and certified. Organizations including Non-UPF Verified, which operates its own independent certification program, urged Newsom earlier this month to veto the legislation, arguing that it does not include processing methods as part of the certification.

The debate comes as scientific and policy measures over UPFs continue to evolve. A recent review examining data from more than 8 million people found links between higher consumption of ultra-processed foods and a range of adverse health outcomes, but researchers and industry stakeholders continue to debate where to draw the line between processed and ultra-processed foods and what standards should govern certification programs.

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